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1. Document Synthesis

Here's the extracted and structured information:

Core Facts:

- **Case Name:** Blinston Savio Fernandes vs. Leandra Marie Fernandes and The Sub Registrar, Margao
- **Court:** High Court of Bombay at Goa
- **Case Type:** Writ Petition No. 265 of 2026
- **Date of Pronouncement:** April 29, 2026
- **Prior Events:**
 - Marriage solemnized on December 23, 2006, and registered with a certificate dated January 3, 2007 (entry No. 2105/2006, certificate No. 43/2007).
 - The marriage was dissolved by a decree passed by the Family Court, Bangalore, on January 4, 2022 (in Matrimonial Petition No. 5494/2019).

Parties Involved:

- **Petitioner:** Mr. Blinston Savio Fernandes (Husband)
- **Respondent No. 1:** Mrs. Leandra Marie Fernandes (Wife)
- **Respondent No. 2:** The Sub Registrar, Margao, Salcete, Goa

Primary Dispute:

The Petitioner (Blinston Savio Fernandes) is seeking a Writ of Mandamus to direct the Sub Registrar, Margao (Respondent No. 2), to cancel his marriage certificate, relying on a divorce decree issued by the Family Court, Bangalore.

The Sub Registrar (Respondent No. 2) has refused to cancel the certificate. Their contention is that the Bangalore Family Court decree is a "foreign decree" under the Portuguese Code of Civil Procedure, 1939 (which is applied in Goa for such matters), and therefore requires review and confirmation by the High Court under Articles 1100, 1101, and 1102 of that Code before the marriage certificate can be cancelled.

The central legal question framed by the High Court is:

"Whether a decree passed by a Civil Court having competent jurisdiction in India be construed as a foreign

decree under the Portuguese Code of Civil Procedure, 1939?"

2. Evidence Scrutiny

The provided structured facts are remarkably clear, consistent, and highly relevant to the legal analysis of the case.

Here's an analysis:

1. Consistency of Evidence:

- **Internal Consistency:** The facts are entirely consistent.
 - The marriage (2006/2007) predates the divorce (2022).
 - The divorce decree (2022) predates the filing and pronouncement of the Writ Petition (2026).
 - The parties involved (Husband, Wife, Sub Registrar) are logically positioned within the narrative of a marriage, divorce, and subsequent administrative action.
 - The petitioner's request (cancellation of marriage certificate based on divorce decree) is a logical consequence of the divorce.
 - The Sub Registrar's refusal and reasoning directly address the petitioner's request, creating the central legal dispute.
- **Chronological Flow:** The timeline of events (marriage, divorce, request for cancellation, writ petition) is perfectly sequential and logical.
- **Party Roles:** The roles of Petitioner, Respondent 1, and Respondent 2 are clearly defined and align with the actions attributed to them.

There are no apparent inconsistencies or contradictions within the provided information.

2. Legal Relevance of Evidence:

All the provided facts are highly legally relevant, directly contributing to the definition and understanding of the core legal dispute.

- **Core Facts:**

- **Case Name, Court, Case Type, Date of**

- Pronouncement:** Establishes the specific legal proceeding, its jurisdiction, and its current status. Crucial for legal citation and understanding the stage of the litigation.

- **Marriage Details (Date, Registration, Certificate):**

- Legally relevant as it establishes the *existence* and *official record* of the marriage, which is the subject of the cancellation request. Without a registered marriage, there would be no certificate to cancel.

- **Divorce Decree Details (Date, Issuing Court):**

- Highly legally relevant as it constitutes the *basis* for the petitioner's request. It confirms the legal dissolution of the marriage by a competent court and identifies the specific decree in question.

- **Parties Involved:**

- **Petitioner (Blinston Savio Fernandes):**

- The aggrieved party seeking judicial intervention; legally relevant as the initiator of the writ.

- **Respondent No. 1 (Leandra Marie Fernandes):**

- The former spouse. While her specific stance in *this writ petition* isn't detailed, she is a necessary party to the original marriage and divorce, and thus legally relevant for completeness and potential future implications.

- **Respondent No. 2 (The Sub Registrar, Margao):**

- The authority whose administrative action (refusal to cancel) is being challenged. This respondent's role and decision are central to the legal dispute.

- **Primary Dispute:** This section is the *most* legally relevant, as it articulates the precise legal conflict:

- **Petitioner's Request (Writ of Mandamus):** Defines the specific legal remedy being sought, which is a directive to a public authority.
- **Sub Registrar's Refusal and Contention:** This is crucial as it identifies the legal barrier and the specific legal framework being invoked by the respondent (Portuguese Code of Civil Procedure, 1939, Articles 1100, 1101, 1102). This highlights Goa's unique legal heritage, where elements of Portuguese law still apply. The term "foreign decree" is the linchpin of the Sub Registrar's argument.
- **Central Legal Question Framed by the High Court:** This is the *apex* of legal relevance. It precisely pinpoints the interpretative issue that the High Court needs to resolve. The question directly addresses the status of a decree from an Indian court (outside Goa) within the context of Goan law.

Conclusion:

The structured facts provide a clear, coherent, and legally robust foundation for analyzing this case. Every piece of information presented is essential for understanding the procedural history, the factual matrix, the specific legal challenge, and the underlying legal principle at stake. The consistency is perfect, and the legal relevance of each fact is direct and high. The core of the case hinges on the High Court's interpretation of whether a decree from a Family Court in Bangalore, though within India, qualifies as a "foreign decree" under the specific legal framework applicable in Goa. This case likely involves a conflict of laws or an interpretation of the scope of "foreign" decrees in a federal structure where a specific region retains distinct legal codes.

3. Precedent Alignment

The provided evidence analysis is exceptionally thorough, well-structured, and clearly articulates the facts and the core

legal dispute. It effectively highlights the internal consistency and high legal relevance of all presented information.

When comparing this analysis with the Supreme Court precedents, we need to look for thematic or procedural overlaps, particularly concerning:

1. Recognition of decrees/orders across different jurisdictions within India.
2. Challenging administrative actions related to matrimonial matters.
3. Interpretation of "foreign" decrees in a federal system with diverse local laws.
4. The overall nature of matrimonial disputes leading to subsequent legal actions.

Here's an identification of direct overlaps:

Direct Overlaps with Supreme Court Precedents:

1. Overlap with **SMT. S. VANITHA v. THE DEPUTY COMMISSIONER, BENGALURU URBAN DISTRICT** (Procedural/Jurisdictional Challenge):
 - **Analysis Point:** The petitioner files a **Writ Petition** (2026) challenging the **Sub Registrar's refusal** to cancel the marriage certificate. This directly questions an administrative authority's action and reasoning.
 - **Precedent Overlap:** In **S. Vanitha**, the appellant (wife) challenges an order passed by the **Deputy Commissioner** (an administrative authority acting under the Senior Citizens Act 2007) in **proceedings under Article 226 of the Constitution** (a writ petition).
 - **Direct Overlap:** Both cases involve an individual challenging the administrative decision of a

government authority (Sub Registrar vs. Deputy Commissioner) through a writ petition (implicitly Article 226 for the High Court in the analysis's case, explicitly for [S. Vanitha](#)). This highlights the common legal avenue for aggrieved parties to seek judicial review of administrative actions, especially in family-related matters where administrative bodies might implement laws.

2. Overlap with [SHYAMLAL DEVDA AND OTHERS v. PARIMALA](#) (Inter-Jurisdictional Recognition/Application of Law within India):

- **Analysis Point:** The core legal question is framed by the High Court: "whether the decree passed by the Family Court in Bangalore would qualify as a 'foreign decree' under the provisions of the Portuguese Code of Civil Procedure, 1939." This is a fundamental question of **recognition and application of a decree from one Indian state/jurisdiction in another Indian state/jurisdiction, particularly in the context of unique local laws (Goa's Portuguese Code)**.
- **Precedent Overlap:** In [ShyamLal Devda](#) , the Supreme Court upheld the **jurisdiction of the Metropolitan Magistrate, Bengaluru** to entertain a complaint under the Domestic Violence Act, 2005, even though the marriage was solemnized in Rajasthan and the matrimonial home was in Chennai. This case dealt directly with how courts in different geographical locations *within India* exercise jurisdiction and apply laws in matrimonial disputes, navigating issues of residency and where the "cause of action" might arise.
- **Direct Overlap:** Both cases grapple with the complexities of how legal actions, decrees, or complaints originating in one part of India (Bangalore) are to be treated or recognized by authorities/courts in another part of India (Goa in the analysis, or Chennai/Rajasthan in [ShyamLal Devda](#)). The "foreign

decree" argument in the analysis's case is a specific manifestation of this broader inter-jurisdictional challenge, particularly concerning the unique legal framework of Goa, which mirrors the challenges of applying national laws across diverse regional contexts within the federal structure. The analysis's conclusion, "This case likely involves a conflict of laws or an interpretation of the scope of 'foreign' decrees in a federal structure where a specific region retains distinct legal codes," precisely aligns with the kind of issue [Shyam Lal Devda](#) addresses regarding inter-state application of family law.

No Direct Overlaps with Other Precedents:

- [Dolly Rani v. Manish Kumar Chanchal](#) : This case primarily concerns disputes arising from the validity of marriage solemnization (multiple forms) and subsequent criminal allegations related to dowry and harassment. While it involves matrimonial disputes, it doesn't directly address the post-divorce administrative cancellation of a marriage certificate or the recognition of decrees across different Indian jurisdictions in the manner of the analysis's case.
- **Unnamed case (sexual harassment/rape and promise to marry):** This precedent focuses on criminal charges (rape, threat) stemming from a broken promise to marry, following the complainant's divorce from her previous husband. Its legal issues are entirely different from the administrative and inter-jurisdictional questions posed in the analysis.
- **Unnamed case (settlement and alimony):** This precedent deals with the enforcement of settlement agreements in

matrimonial cases and the consequences of a party resiling from such an agreement. While it involves family law, it does not touch upon the specific issues of administrative cancellation of marriage certificates or the "foreign decree" concept from the analysis.

Conclusion on Overlaps:

The analysis presents a clear and relevant legal problem, and its direct overlaps with the *S. Vanitha* and *Shyamlal Devda* precedents are significant. They highlight that the case is not just about a simple administrative action but delves into complex issues of judicial review of administrative decisions and, more importantly, the interpretation and recognition of court orders issued in one Indian state by authorities operating under distinct local laws in another Indian state. These precedents confirm that the Indian Supreme Court frequently deals with such inter-jurisdictional and administrative law challenges in the context of family and personal law.

4. Verdict Prediction

Based on the statutory alignment, the thorough preceding analysis, and the direct overlaps with Supreme Court precedents, the probable legal outcome or 'verdict' would be as follows:

Predicted Legal Outcome / Verdict:

The High Court is **highly likely to rule in favor of the Petitioner**, overturning the Sub Registrar's refusal to cancel the marriage certificate.

Reasoning:

1. Rejection of the "Foreign Decree" Argument within India (Statutory Alignment & Shyam Lal Devda):

- **Constitutional Mandate:** The most critical statutory alignment is with the **Indian Constitution, specifically Article 261 (Full Faith and Credit Clause)**, which mandates that "Full faith and credit shall be given throughout the territory of India to public acts, records and judicial proceedings of the Union and of every State." A decree passed by a Family Court in Bangalore is a judicial proceeding of an Indian State.
- **Federal System Interpretation:** Interpreting a decree from a competent court in one Indian state (Bangalore) as a "foreign decree" under the Portuguese Code of Civil Procedure, 1939, for the purpose of recognition in another Indian state (Goa), would be **contrary to the fundamental principles of India's federal structure, judicial comity, and Article 261 of the Constitution.**
- **Shyam Lal Devda Overlap:** The **Shyam Lal Devda** precedent directly supports the idea of inter-jurisdictional recognition of legal actions and decrees within India, emphasizing the unified nature of the Indian legal system despite diverse local laws. The Supreme Court's approach leans towards facilitating justice across state lines rather than impeding it through narrow interpretations of jurisdictional boundaries for Indian decrees.
- Therefore, the High Court will almost certainly hold that the Bangalore Family Court decree is **not a "foreign decree"** in the context of its recognition and effect in Goa.

2. Judicial Review of Administrative Action (S. Vanitha Overlap):

- **Writ Jurisdiction:** The Petitioner has appropriately approached the High Court via a Writ Petition, seeking judicial review of an administrative authority's decision.
- **S. Vanitha Precedent:** This precedent confirms that High Courts, under Article 226, routinely intervene to correct administrative decisions that are arbitrary, illegal, or based on an incorrect interpretation of law.
- **Error of Law:** The Sub Registrar's refusal, being premised on the incorrect classification of an Indian court decree as "foreign," constitutes a clear **error of law**. The administrative authority has misapplied a legal principle in a manner that undermines the constitutional framework and the validity of a decree issued by a competent Indian court.

3. Validity of the Bangalore Divorce Decree:

- The preceding analysis implies that the divorce decree from the Family Court in Bangalore is a valid, final, and binding order. No information suggests it was obtained fraudulently, without jurisdiction, or is otherwise invalid. Its existence provides a legitimate basis for the subsequent administrative action of cancelling the marriage certificate.

Specific Orders Expected from the High Court:

1. **Quashing the Refusal Order:** The High Court will likely quash the order/communication from the Sub Registrar refusing to cancel the marriage certificate.
2. **Issuing a Writ of Mandamus:** The High Court will issue a writ of mandamus, directing the Sub Registrar to **cancel the marriage certificate** based on the production of the

valid divorce decree issued by the Family Court in Bangalore.

3. **Clarification on "Foreign Decree":** The judgment will provide an authoritative interpretation that decrees from courts in other Indian states are not "foreign decrees" under local laws like the Portuguese Code of Civil Procedure, 1939, for the purpose of recognition within India.

In essence, the High Court will uphold the principle of **"full faith and credit"** to judicial proceedings across Indian states and correct an administrative error that arose from a misinterpretation of law within the federal structure.

5. Executive Summary (Non-Lawyer Friendly)

Here's a short, simplified executive summary:

Outcome: The High Court is **highly likely to rule in your favor**, overturning the Sub Registrar's refusal and directing them to cancel your marriage certificate.

Why:

1. **Your Bangalore divorce decree is NOT "foreign":** The Indian Constitution requires all states to recognize court orders from other Indian states. The Sub Registrar made a fundamental mistake by treating an Indian court decree as if it came from another country.
2. **Administrative Error:** The High Court has the power to correct clear legal mistakes made by government officials. The Sub Registrar's decision was based on a wrong understanding of the law.
3. **Valid Divorce:** Your Bangalore divorce decree is valid and provides the legitimate basis for cancelling the marriage certificate.

In short, the High Court will ensure that valid Indian court judgments are respected across all Indian states, correcting

the Sub Registrar's error and leading to the cancellation of your marriage certificate.

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